

25CHCV03671 25CHCV03671

County: los-angeles

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MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Motion filed on March 16, 2026. MOVING PARTY: Plaintiff Kyle Perez RESPONDING PARTY: Defendants LoanCare, LLC and Lakeview Loan Servicing, LLC NOTICE: OK. RELIEF REQUESTED: Leave to file a First Amended Complaint. RULING: Denied without prejudice.

BACKGROUND

Plaintiff Kyle Perez filed the instant motion on March 16, 2026, supported by a memorandum of points and authorities, the declaration of Kyle Perez, a proposed First Amended Complaint, and a proposed order. Defendants LoanCare, LLC and Lakeview Loan Servicing, LLC filed an opposition on June 16, 2026. Plaintiff filed a reply on June 26, 2026. The reply was due no later than June 24, 2026, five court days before the July 1, 2026 hearing. (Code Civ. Proc., § 1005, subd. (b).) The reply was untimely filed and therefore is not considered.

DISCUSSION Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) "This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the

amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Here, Plaintiff attached a proposed First Amended Complaint, but the motion does not otherwise comply with Rule 3.1324. Plaintiff does not state what allegations in the prior pleading are proposed to be deleted, or where those allegations are located by page, paragraph, and line number. Plaintiff also does not state what allegations are proposed to be added, or where those allegations are located by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324, subd. (a).) Plaintiff does not specify the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, or why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

CONCLUSION

Plaintiff's motion for leave to file a First Amended Complaint is denied without prejudice.